Owner-Side Construction Issues | AIA A201 and Taiwan PCC

AIA A201-2017 and Taiwan PCC Model Contract for Public Construction, revised December 30, 2025 (1141230). Changes, delay, payment and termination from the owner's perspective.

INGRID KAO | INDEPENDENT COMPARATIVE ANALYSIS | NOVEMBER 11, 2026

Issue	AIA A201-2017	Taiwan PCC model	Proposed Owner-Side Actions
Changes	§§7.2-7.3: agreed change orders settle scope, price and time; owner/architect directives permit work before agreement, with documented valuation and interim certification.	Art.20(1)-(3), (9): written bilateral changes; advance work requires written agreement on payment and change deadlines. Negotiation defaults to three months; missed agreed deadlines can create additional cost/profit exposure.	Set approval authority, pricing support, markup limits and a change log. Before directing urgent MEP revisions, document interim payment, schedule effects and the deadline for final agreement; prevent informal instructions from bypassing controls.
Delay	§8.3 and §15.1.6 provide time-relief and claim procedures. §15.1.7 waives consequential damages while preserving applicable liquidated damages (LD).	Art. 7(3): time relief for qualifying critical-path delay not attributable to the contractor, subject to notice and evidence. Art. 17(1), (4): daily LD and an aggregate cap, with tender-specific selections/defaults.	Define energization, commissioning and ready-for-service milestones separately. Require an integrated critical-path schedule, mitigation and contemporaneous records; allocate utility and owner-vendor interfaces. Align milestone LD, caps and damages provisions with the commercial impact of delayed capacity.
Payment	§§9.3.2-9.3.3 address stored equipment and title; §§9.4-9.5 provide architect certification and reasoned withholding to protect the owner.	Art. 5(1), items 2(1), 2(3), 4-5; Art. 5(3): elected progress payments, ordinarily for completed work, with 5% baseline retention; separable undisputed amounts payable; specified suspension and setoff rights.	For long-lead switchgear and cooling equipment, negotiate offsite-payment eligibility, identification, inspection, insurance and title protection. Tie release of agreed holdbacks to testing, commissioning and handover documents; maintain a calendar for review, payment and disputed amounts.
Termination	§14.2.2: architect certification and seven days' notice to contractor and any surety. §14.4.3: convenience settlement covers properly executed work and termination expenses; fee only if the Agreement provides for one.	Art.21(1), (3)-(7): specified defaults, takeover and completion-cost settlement; policy/public-interest termination requires superior approval. Neutral termination follows specified compensation provisions, rather than a general unrestricted convenience right.	Preserve cure and notice records. Negotiate continuity rights over essential subcontracts, OEM orders, warranties, designs and test records; confirm surety coordination. Define settlement evidence, demobilization and site protection so replacement contractors can complete critical systems.

Comparison of model terms; project amendments and governing law require separate review. The owner-side actions are proposed negotiation points for data-center projects.

Primary sources: AIA official A201-2017 preview - §§7-9, 14, 15 | PCC latest-version index - lists 1141230 | PCC official model and version history | PCC 1141230 official PDF - Arts. 5, 7, 17, 20, 21